

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

CONFERENCE COMMITTEE
SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 2992

By: Boles, Chapman, Cornwell,
Hildebrant, Staires,
Dobrinski, Clinton,
Dollens, Wolfley, Alonso-
Sandoval, Menz, Harris,
Munson, Adams, Waldron,
Stewart, Hill, Pogemiller,
Turner, Kelley, McCane,
Tedford, Rosecrants, Hays,
and Grego of the House

and

Green, Seifried, Mann,
Coleman, Prieto, Deevers,
Kirt, Hamilton, and Nice of
the Senate

CONFERENCE COMMITTEE SUBSTITUTE

An Act relating to the Corporation Commission;
creating the Data Center Customer Ratepayer
Protection Act of 2026; defining terms; requiring
governing bodies provide certain protections
regarding rates; requiring electric suppliers
establish and maintain certain separate terms,
conditions and tariffs; detailing terms and
conditions; requiring certain term of service be ten
years; making certain exception; stating
applicability; authorizing the promulgation of rules;
granting certain exclusive jurisdiction; requiring
electric suppliers comply to act; requiring certain
parties be given notice of purchase; providing
penalty for failing to provide notice; providing for
collection of penalty and enforcement of violations;

1 providing for codification; providing an effective
2 date; and declaring an emergency.

3
4
5 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

6 SECTION 1. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 900 of Title 17, unless there is
8 created a duplication in numbering, reads as follows:

9 This act shall be known and may be cited as the "Data Center
10 Customer Ratepayer Protection Act of 2026".

11 SECTION 2. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 901 of Title 17, unless there is
13 created a duplication in numbering, reads as follows:

14 As used in the Data Center Customer Ratepayer Protection Act of
15 2026:

16 1. "Applicable governing body" means, with respect to any
17 retail electric supplier, the governmental, regulatory, or self-
18 governing authority having lawful jurisdiction over the
19 construction, ownership, interconnection, planning, safety, or
20 operation of such electric supplier, including but not limited to,
21 the Corporation Commission, a municipal governing body, a rural
22 electric cooperative's board of trustees, or other nonjurisdictional
23 supplier;

1 2. "Cost causation" means customers responsible for the
2 electric supplier incurring the cost should be allocated their
3 equitable share of those costs;

4 3. "Electric supplier" means any entity providing electric
5 service within the state, including investor-owned utilities,
6 electric cooperatives, municipal electric utilities, and public
7 power utilities;

8 4. "Large load customer" means new data centers, new
9 cryptocurrency mining operations and new facilities whose primary
10 function is artificial-intelligence computing facilities that
11 contract with an electric supplier to add seventy-five (75)
12 megawatts or greater electric load per facility or in aggregate
13 behind a single point of interconnection to an electric supplier's
14 load after July 1, 2026. It does not include residential,
15 commercial, agricultural, or industrial ratepayers, or those
16 entities that build generation for behind-the-meter projects; and

17 5. "Residential customer" means a customer receiving retail
18 electric service for household purposes as established by the
19 applicable electric supplier.

20 SECTION 3. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 902 of Title 17, unless there is
22 created a duplication in numbering, reads as follows:

23 Any applicable governing body responsible for reviewing electric
24 supplier rates shall ensure that residential, commercial and

1 industrial customers are protected from paying unjust rates
2 resulting directly from electric service to large load customers.
3 The applicable governing body shall ensure that all rates are fair,
4 just and reasonable, and costs and revenues are assigned and
5 allocated among customers in accordance with cost causation
6 principles.

7 SECTION 4. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 903 of Title 17, unless there is
9 created a duplication in numbering, reads as follows:

10 All electric suppliers shall establish and maintain separate
11 terms and conditions of electric service applicable to any large
12 load customer and shall create and maintain separate tariffs
13 applicable to such large load customers. These terms, conditions,
14 and tariffs shall include credit requirements and any other measures
15 necessary to ensure that such customers reimburse the electric
16 supplier for all costs fairly allocated to them under Section 3 of
17 this act, including costs incurred to directly serve the customer
18 that may remain unrecovered if the customer departs the system or
19 materially reduces load. The term of service for a large load
20 customer shall be at least ten (10) years. For any public power
21 utility using tax-exempt municipal financing, the term of the
22 agreement shall be the lesser of ten (10) years or the applicable
23 Internal Revenue Service Guideline.

24

1 SECTION 5. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 904 of Title 17, unless there is
3 created a duplication in numbering, reads as follows:

4 This act applies to all retail electric suppliers serving load
5 in this state, including investor-owned utilities regulated by the
6 Corporation Commission, electric cooperatives, municipal electric
7 utilities, and public power utilities.

8 SECTION 6. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 905 of Title 17, unless there is
10 created a duplication in numbering, reads as follows:

11 The Oklahoma Corporation Commission may promulgate rules within
12 its authority and jurisdiction to effectuate the provisions of this
13 act. For electric suppliers subject to the jurisdiction of the
14 Oklahoma Corporation Commission for regulation of their electric
15 rates, the Oklahoma Corporation Commission shall have exclusive
16 jurisdiction to enforce the provisions of this act within its
17 authority. Retail electric suppliers shall comply with this act as
18 a condition of providing service to large load customers.

19 SECTION 7. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 906 of Title 17, unless there is
21 created a duplication in numbering, reads as follows:

22 A. Any large load customer, as defined in Section 2 of this
23 act, or any developer, owner, or entity acting on behalf of a large
24 load customer, that purchases any land in this state outside of an

1 industrial development park or a municipality, shall be required to
2 notify the Corporation Commission, the county commissioners of the
3 county in which the land is purchased, and any adjacent property
4 owners who own property that abuts the large load customer's land
5 within sixty (60) days after the land is purchased. Such notice
6 shall be given to by certified mail, return receipt requested, to
7 the party's last-known business or residential address.

8 B. Any large load customer, or any developer, owner, or entity
9 acting on behalf of a large load customer, who fails to provide
10 proper notice as required by this section, shall be subject to an
11 administrative penalty of One Thousand Five Hundred Dollars
12 (\$1,500.00) per day, per violation to be collected and enforced by
13 the county commissioners in which the land is located. If a large
14 load customer has a project that utilizes land located in two or
15 more counties, the penalty shall be divided amongst the counties
16 based upon the percentage of land located in each county.

17 SECTION 8. This act shall become effective July 1, 2026.

18 SECTION 9. It being immediately necessary for the preservation
19 of the public peace, health or safety, an emergency is hereby
20 declared to exist, by reason whereof this act shall take effect and
21 be in full force from and after its passage and approval.

22
23 60-2-17585 JBH 04/30/26
24